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IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, Jr., et al., Defendant.	No. 25-CV-03367-PHX-SMB **RESPONSE IN OPPOSITION TO MOTION FOR PRELIMINARY INJUNCTION**

Defendant Robert F. Kennedy, Jr., by and through undersigned counsel, submits this Response in Opposition to Plaintiff's Motion for Preliminary Injunction. Defendant appears solely for the purpose of opposing the Motion for Preliminary Injunction (Doc. 36-1)[1] and expressly reserves all defenses.[2] For the following reasons, the Motion for Preliminary Injunction (Doc. 36-1) should be denied. This Response is supported by the following Memorandum of Points and Authorities and by all matters of record.

[1] Defendant believes Doc. 36-1 is the operative Motion for Preliminary Injunction.
[2] Plaintiff has a pending Motion for Leave to File Second Amended Complaint. Doc. 43. Defendant has not filed a responsive pleading in this matter.

I. FACTUAL, PROCEDURAL AND ADMINISTRATIVE HISTORY

A. Factual and Administrative EEO Complaint History.

Plaintiff was a Supervisory Clinical Nurse for the Indian Health Service ("IHS") at the Phoenix Indian Medical Center. Doc. 1 at 16. On April 13, 2023, Plaintiff filed an EEO complaint alleging he was subjected to discrimination and harassment by the Agency on the bases of race (Caucasian), sex (male), religion (Christian), color (white), age, and in reprisal for prior protected EEO activity, when:

> 1. Beginning in January 2023, management failed to timely process his Family Medical Leave Act (FMLA) paperwork;
> 2. On March 2, 2023, management gave Complainant a low Performance Management Appraisal Plan (PMAP) score;
> 3. On March 21, 2013, management placed Complainant on administrative leave, escorted Complainant out of the facility utilizing security, and removed Complainant's system access;
> 4. In April 2023, management placed Complainant on a temporary 120-day detail in another unit;
> 5. Beginning April 2023, management denied Complainant access to the men's restroom;
> 6. Beginning April 2023, management did not provide Complainant office keys; and
> 7. Beginning April 2023, management reassigned Complainant to an undesirable location.

Doc. 1 at 16.

Following an investigation, on July 11, 2024, the Agency issued a final decision that the Agency did not discriminate against Plaintiff. Doc. 1 at 17. Plaintiff appealed. Doc. 1 at 17. On September 2, 2025, the EEOC affirmed the Agency's decision. Doc. 1 at 18.

Plaintiff contends that he "exhausted administrative remedies" by filing a formal EEOC charge on April 13, 2023, and receiving a final EEOC decision on September 2, 2025. Doc. 1 at 3. That EEOC decision (Appeal No. 2024004239) is attached to Plaintiff's Complaint (hereinafter, the "EEOC Decision"). Doc. 1 at 16-20.

Plaintiff's EEO complaint and the EEOC Decision concerned only Plaintiff's

"complaint of employment discrimination in violation of Title VII of the Civil Rights Act . . . and the Age Discrimination in Employment Act of 1967." Doc. 1 at 16-20.

B. District Court Procedural History.

On September 15, 2025, Plaintiff filed a Complaint against Defendant. Doc. 1. On December 18, 2025, Plaintiff filed a First Amended Complaint asserting seven causes of action—Discrimination and Retaliation under Title VII ("Counts I-II"), Age Discrimination under the ADEA ("Count III"), Disability Discrimination under the ADA ("Count IV), Interference with FMLA ("Count V"), Whistleblower Retaliation ("Count VI"), and Civil Service Reform Act Retaliation ("CSRA") ("Count VII"). Doc. 32.

Plaintiff alleges that, beginning December 2022, he "engaged in protected activity by (i) filing internal EEO complaints alleging discrimination and hostile conduct, (ii) submitting whistleblower disclosures to the Office of Special Counsel, and (iii) requesting and obtaining FMLA leave for a serious medical condition." Doc. 32 at 4. Plaintiff contends that in retaliation, Defendant took a series of adverse actions, including: failure to process FMLA paperwork, unfair performance rating, public "perp-walk" and administrative leave, reassignment to an undesirable detail, and denial of access to work facilities. Doc. 32 at 4-5. Plaintiff requests the Court declare that Defendant's conduct violated the Whistleblower Protection Act ("WPA"), order reinstatement to Plaintiff's former position with back pay and benefits, award damages, fees and costs, and enjoin Defendant from further retaliation. Doc. 32 at 11-12.

On December 2, 2025, Plaintiff filed a Motion for Preliminary Injunction. Doc. 24. On December 18, 2025, Plaintiff filed an Amended Motion for Preliminary Injunction. Doc. 36-1. Therein, Plaintiff alleges that "in June 2025 and prior" Plaintiff made multiple protected whistleblower disclosures against IHS "to the Office of Special Counsel, the HHS Office of Inspector General, the Centers for Medicare & Medicaid Services, the Joint Commission, and Members of Congress." Doc. 36-1 at 3. Plaintiff contends that "within weeks of the disclosures, IHS placed [Plaintiff] on paid, non-duty status," in violation of the WPA, 5 U.S.C. § 2302(b)(8). Doc. 36-1 at 3-4. Plaintiff requests the Court "enjoin IHS

. . . from taking any further adverse personnel action, disciplinary measure, or restriction on Plaintiff's access to IHS facilities," reinstate Plaintiff immediately with pay and benefits, "mandate that any future proposed adverse personnel action" follow Plaintiff's proposed framework, enjoin Defendant from retaliation and harassment, and "award attorney's fees and costs pursuant to 5 U.S.C. § 7701(a).[3]" Doc. 36-1 at 9-10.

II. PLAINTIFF IS NOT ENTITLED TO INJUNCTIVE RELIEF

A. Legal standard.

The substantive standard for issuing a temporary restraining order is identical to the standard for issuing a preliminary injunction. *See Stuhlbarg Int'l Sales Co. v. John D. Brush & Co.*, 240 F.3d 832, 839 n.7 (9th Cir. 2001). An injunction is a matter of equitable discretion and is "an extraordinary remedy that may only be awarded upon a clear showing that the plaintiff is entitled to such relief." *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 22 (2008). Preliminary injunctions are "never awarded as of right." *Id.* at 24.

Preliminary injunctions are "not a preliminary adjudication on the merits." *Sierra On-Line, Inc. v. Phoenix Software, Inc.*, 739 F.2d 1415, 1422 (9th Cir. 1984). A court should not grant a preliminary injunction unless the applicant shows: (1) a strong likelihood of his success on the merits; (2) that the applicant is likely to suffer an irreparable injury absent preliminary relief; (3) the balance of hardships favors the applicant; and (4) the public interest favors a preliminary injunction. *Winter*, 555 U.S. at 20. To show harm, a movant must allege that concrete, imminent harm is likely with particularized facts. *Id.* at 22. Where the government is a party, courts merge the analysis of the final two *Winter* factors, the balance of equities and the public interest. *Drakes Bay Oyster Co. v. Jewell*, 747 F.3d 1073, 1092 (9th Cir. 2014) (citing *Nken v. Holder*, 556 U.S. 418, 435 (2009)).

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[3] The statute cited by Plaintiff is not applicable as this is not an appeal to the Merit Systems Protection Board. *See* 5 U.S.C. § 7701. Defendant also contends that Plaintiff is not entitled to attorney's fees in this matter because he is appearing *pro se*.

B. Plaintiff is not likely to succeed on the merits.

Plaintiff cannot show that he is "likely to succeed on the merits," as is required for injunctive relief. *Winter*, 555 U.S. at 20. Plaintiff's Motion for Preliminary Injunction is based on his claim for whistleblower retaliation. Doc. 36-1. Plaintiff, however, makes no real attempt to establish that the Court has subject matter jurisdiction to hear the claim for whistleblower retaliation. *Young v. Merit Sys. Prot. Bd.*, 961 F.3d 1323, 1328 (Fed. Cir. 2020) (explaining in a whistleblower action that "[a] party cannot establish jurisdiction through general assertions, but must provide substantive details"). The Court should deny the Motion for Preliminary Injunction because the Court lacks subject matter jurisdiction to hear Plaintiff's whistleblower claim.

"The Civil Service Reform Act of 1978 ("CSRA"), 5 U.S.C. § 1101 *et seq.*, establishes a framework for evaluating personnel actions taken against federal employees." *Kloeckner v. Solis*, 568 U.S. 41, 44 (2012). Under the CSRA, whistleblower retaliation is a prohibited personnel practice. 5 U.S.C. § 2302(b)(8). Claims alleging reprisal for whistleblowing activity are therefore pursued under the CSRA. *Kerr v. Jewell*, 836 F.3d 1048, 1053 (9th Cir. 2016) ("[T]he statutory scheme under the CSRA and WPA provide[] the exclusive means for [Plaintiff] to obtain judicial review of her WPA claim."). Under this statutory scheme, it is unlawful to "take . . . a personnel action with respect to any employee or applicant for employment because of . . . any disclosure of information by an employee or applicant which the employee or applicant reasonably believes evidences . . . any violation of any law, rule, or regulation, or . . . gross mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety." *Id.* at 1053 (quoting 5 U.S.C. § 2302(b)(8)).

An employee who believes he is the victim of an unlawful reprisal must first bring his claim to the Office of Special Counsel ("OSC"), which investigates the complaint. *Stella v. Mineta*, 284 F.3d 135, 142 (D.C. Cir. 2002) (citing 5 U.S.C. § 1214); *Weber v. United States*, 209 F.3d 756, 758 (D.C. Cir. 2000); *Flynn v. Merit Sys. Prot. Bd.*, 747 F. App'x 609, 610 (9th Cir. 2019) (explaining that MSPB jurisdiction over an IRA appeal

requires that the appellant have exhausted administrative remedies before the OSC). If the OSC finds that there was a prohibited personnel action as defined by § 2302, it reports its findings to the Merit Systems Protection Board ("MSPB"), and it can petition the MSPB on the employee's behalf. *Stella*, 284 F.3d at 142. If, on the other hand, the OSC finds no agency wrongdoing, then the employee himself may bring an action before the MSPB via an Individual Right of Action ("IRA") appeal. 5 U.S.C.§§ 1221; 1214(a)(3); *Weber v. United States*, 209 F.3d 756, 758 (D.C. Cir. 2000).

"Importantly, in an IRA appeal to the Board, the Board's review is limited to the merits of allegations of violations of the Whistleblower Protection Act." *Young*, 961 F.3d at 1327-28. "Discrimination claims may not be raised in that context." *Id.*; *see also* 5 C.F.R. § 1209.2(c) (in an IRA appeal the "appellant may not raise affirmative defenses, such as claims of discrimination or harmful procedural error"); *Zachariasiewicz v. U.S. Dep't of Just.*, 48 F.4th 237, 243 (4th Cir. 2022) (agreeing with the district court that IRA appeals to the MSPB are statutorily separate from, and follow a different procedural path than, affirmative claims of discrimination). That is to say, IRA appeals "by definition are never 'mixed cases.'" *Young*, 961 F.3d at 1328; *Edwards v. Merit Sys. Prot. Bd.*, No. 2022-1967, 2023 WL 4398002, at *1 (Fed. Cir. July 7, 2023) (noting that IRA appeals do not constitute mixed cases, even where the underlying allegations relate to retaliation for exercising a Title VII right); *Wine v. Merit Sys. Prot. Bd.*, No. 25-CV-03336-JCS, 2025 WL 2841689, at *7 (N.D. Cal. Oct. 7, 2025) (holding the district court lacked jurisdiction because, "[a]s a matter of law, an IRA whistleblower case cannot be a mixed case").

As such, a final decision by the Board is appealable only to "the United States Court of Appeals for the Federal Circuit or any court of appeals of competent jurisdiction." 5 U.S.C. § 7703(b)(1)(B); *see also Young*, 961 F.3d at 1327; *Rollison v. Roth*, Civ. A. No. 20-0380, 2021 WL 2580580, at *3 (S.D. Ohio June 23, 2021) (holding district court lacked jurisdiction to consider Plaintiff's IRA appeal because "[5 U.S.C. §] 7703(b)(1)(B) . . . is the exclusive avenue—and the Federal Circuit is the exclusive forum—for plaintiffs seeking judicial review of an unfavorable MSPB IRA decision"); *Daniels v. Merit Sys.*

Prot. Bd., 832 F.3d 1049, 1054 (9th Cir. 2016) (explaining that the Ninth Circuit has jurisdiction to review MSPB decisions on WPA claims).

Plaintiff does not allege that he submitted the WPA claim to the MSPB or that this Court is the proper forum to hear an appeal of a MSPB decision over a WPA claim. *See Young*, 961 F.3d at 1328 (requiring plaintiff in a whistleblower action to provide "substantive details" that establish jurisdiction). Even if Plaintiff submitted the WPA claims to the MSPB, Plaintiff does not provide a basis for this Court's jurisdiction, when in all likelihood such claim would be before a court of appeals. *See* 5 U.S.C. § 7703(b)(1)(B). As such, the Court lacks subject matter jurisdiction and should deny the Motion for Preliminary Injunction. *Winter*, 555 U.S. at 20 (requiring Plaintiff to demonstrate a strong likelihood of success on the merits); *California v. Azar*, 911 F.3d 558, 575 (9th Cir. 2018) ("Likelihood of success on the merits is the most important factor; if a movant fails to meet this threshold inquiry, [the Court] need not consider the other factors.").

C. Plaintiff cannot establish irreparable harm.

The Court does not need to consider the other factors because Plaintiff cannot establish success on the merits. *Azar*, 911 F.3d at 575. Nevertheless, the Court should still deny Plaintiff's Motion because Plaintiff has not demonstrated irreparable harm.

Plaintiff "must demonstrate immediate threatened injury as a prerequisite to preliminary injunctive relief." *Caribbean Marine Servs. Co. v. Baldridge*, 844 F.2d 668, 674 (9th Cir. 1988). The "possibility" of injury is "too remote and speculative to constitute an irreparable injury meriting preliminary injunctive relief." *Id.* "Subjective apprehensions and unsupported predictions . . . are not sufficient to satisfy a plaintiff's burden of demonstrating an immediate threat of irreparable harm." *Id*. at 675-76.

Plaintiff cannot show that denying the temporary restraining order would make "irreparable harm" the likely outcome. *Winter*, 555 U.S. at 22 ("[P]laintiffs . . . [must] demonstrate that irreparable injury is likely in the absence of an injunction."). "[A] preliminary injunction will not be issued simply to prevent the possibility of some

remote future injury." *Id.* "Speculative injury does not constitute irreparable injury." *Goldie's Bookstore, Inc. v. Superior Court of State of Cal.*, 739 F.2d 466, 472 (9th Cir. 1984). Plaintiff cannot establish irreparable harm where he is alleging only speculative injury such as "reputational damage," "threat of further retaliation," and a "chilling effect on federal employees." Doc. 36-1 at 5.

D. The equities and public interest do not favor Plaintiff.

Because the government is opposing the preliminary injunction, the remaining two factors—balance of harms and the public interest—merge. *Azar*, 911 F.3d at 575. Here, both factors weigh heavily against an injunction.

"The Civil Service Reform Act of 1978 ("CSRA"), 5 U.S.C. § 1101 *et seq.*, establishes a framework for evaluating personnel actions taken against federal employees." *Kloeckner*, 568 U.S. at 44. Claims alleging reprisal for whistleblowing activity are therefore pursued under the CSRA via the MSPB. *Kerr*, 836 F.3d at 1053.

Plaintiff has not alleged that he has exhausted his administrative remedies or that this Court is the proper court to hear his claims under the WPA. Because the proposed preliminary injunction intrudes upon this administrative process (and granting the PI cannot occur in the absence of jurisdiction), the Court should deny the requested injunction.

V. CONCLUSION

Accordingly, this Court should deny Plaintiff's Motion for Preliminary Injunction (Doc. 36-1).

RESPECTFULLY SUBMITTED December 31, 2025.

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s/ Victoria H. Gray
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